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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.7
2. Some Nepal Laws Amendment and Repeal Act, 2072 (2015) 2072.6.14
3. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13
4. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 (2017) 2074.6.30
5. Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 (2018) 2075.11.19

Act Number 7 of the year 2063 (2006)

An Act Made to Provide for Amendments and Consolidation in the Laws relating to the Nepali Army

Preamble: Whereas, as a result of the historic people's movement, the sovereignty of Nepal is vested in the Nepalese people and the source of state power is the Nepalese people themselves, it is desirable to make timely amendments and consolidation in the prevailing legal provisions relating to the establishment, management, control, use and mobilization of the Nepali Army in order to make the Nepali Army accountable towards the Nepalese people;

Now, therefore, the House of Representatives has enacted this Act in the first year of the issuance of the House of Representatives Declaration, 2063 (2006). Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Military Act, 2063 (2006)."
- (2) This Act shall come into force immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Nepali Army" means the collective organization of persons appointed in the Nepali Army under this Act or any part thereof. (b) "Force" means any organized body of any part or group of the Nepali Army raised by the Government of Nepal for a specific purpose. (c) "On active service" means any of the following conditions:- (1) Being part of or working with any unit of the Nepali Army engaged in operations against an enemy, (2) Being part of or working with any unit of the Nepali Army engaged in military operations in a country or place wholly or partly occupied by an enemy, or advancing towards such country or place, (3) Being part of or working with any unit of the Nepali Army while in the custody of the military of any foreign country, (4) Being involved in internal security operations as part of or with any unit of the Nepali Army against any person or group who is or is suspected to be engaged in destructive or violent activities, with or without weapons, (5) Declared by the Government of Nepal to be on active service pursuant to Section 135. (d) "Chief of the Army Staff" means the Chief of the Army Staff of the Nepali Army appointed pursuant to Section 8. (e) "Officer" means an officer of the Nepali

Army above the rank of Junior Commissioned Officer, and the term also includes officers of equivalent rank in the Reserve Force. (f) "Junior Commissioned Officer" means the Chief Warrant Officer, Warrant Officer, and Junior Commissioned Officer of the Nepali Army, and the term also includes persons of equivalent rank in the Reserve Force. (g) "Commanding Officer" means any of the following officers:- (1) The officer commanding a Unit or Sub-Unit, (2) The officer in command of detachments of Units or Sub-Units when separately employed, (3) For every person under clause (b) of sub-section (1) of Section 3, the Commanding Officer of any Company, Detachment, or Department to which he/she is attached, (4) Where not so attached under sub-clause (3), the officer commanding the force in which he/she is currently serving, nominated or designated by him/her as the Commanding Officer, (5) If no officer is nominated or designated under sub-clause (4), the officer commanding the relevant force. (h) "Non-Commissioned Officer" means the Hudda, Amaldar, Pyuth of the Nepali Army, and the term also includes persons of that rank in a force raised for a specific purpose. (i) "Company" means a distinct unit established as a Company within the Nepali Army. (j) "Brigade" means a distinct unit established as a Brigade within the Nepali Army. (k) "Regiment" means a distinct unit established as a Regiment within the Nepali Army. (l) "Battalion" means a distinct unit established as a Battalion within the Nepali Army. (m) "Rank" means the ranks from Officer to Non-Commissioned Officer. (n) "Superior Officer" means the immediate superior officer, and for this purpose includes Junior Commissioned Officers and Non-Commissioned Officers. (o) "Offence" means an act deemed to be an offence under Chapter-7. (p) "Enemy" means armed military rebels, armed traitors, armed insurgents, armed robbers, and any other armed persons of any kind against whom any person within the jurisdiction of this Act is required to act. (q) "Military Court" means the General Military Court, Summary General Military Court, District Military Court, Summary Military Court under Section 67, and the Special Military Court under Section 119. (r) "Committee" means the Military Welfare Fund Operation and Management Committee under Section 29. (s) "Welfare Activity" means activities for the benefit of serving and retired military personnel and their families, including insurance, medical treatment, health, scholarships, provision of housing, and operation of canteens, and the term also includes establishing and operating schools and colleges. (t) "Welfare Scheme" means income-generating activities to support welfare activities, and the term also includes activities of providing loans or investing in shares in infrastructure and service-oriented projects, financial institutions, and industries established in Nepal on a prescribed basis.

3. Persons Subject to the Jurisdiction of this Act: (1) The following persons shall be subject to the jurisdiction of this Act:-

- (a) Persons appointed in the Nepali Army under this Act,
 - (b) Non-military persons employed by the Nepali Army or in the service of the Nepali Army or accompanying the Nepali Army for assistance in work while in camp, on march for active service, or in an area declared by the Government of Nepal as an area of active service,
 - (c) Persons selected for appointment in the Nepali Army.
- (2) A person under clause (b) of sub-section (1) shall be deemed to be under the command of the Commanding Officer of the Department, Formation, or Unit to which he/she is attached.
- (3) A person under clause (b) of sub-section (1), if not attached under sub-section (2) to the command of a Commanding Officer of any Department, Formation, or Unit, shall be deemed to be under the command of the officer designated or nominated as his/her Commanding Officer by the officer commanding the force in which he/she is currently serving temporarily, or if no officer is so designated or nominated, the officer commanding the relevant force.
- (4) The Commanding Officer of a force shall not place any person mentioned in clause (b) of sub-section (1) under the command of an officer lower in rank than himself/herself, unless such person is a superior officer.

(5) The jurisdiction of this Act shall also apply to persons under sub-section (1) for offences committed outside the State of Nepal.

(6) Offences committed by persons under sub-section (1) against citizens of the country where they are deployed while serving in the United Nations Peacekeeping Force shall fall within the jurisdiction of other courts. Chapter-2

Establishment and Management of Nepali Army

4. Establishment and Management of Nepali Army: Amended by Some Nepal Acts Amendment Act, 2072 (2015).

(1) The Nepali Army shall be established for the protection of Nepal's freedom, sovereignty, territorial integrity, independence, and national unity.

(2) The Nepali Army existing at the commencement of this Act shall be deemed to be established under this Act.

(3) The management of the Nepali Army shall be as mentioned in this Act and the rules made under this Act, and regarding other matters, as directed by the Government of Nepal. 5. Repealed by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). 6.

National Security Council: (1) Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) (2) Deleted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) (3) Amended by Some Nepal Acts Amendment Act, 2072 (2015). In addition to the functions mentioned in the Constitution of Nepal, the functions, duties, and powers of the National Security Council shall be as follows:-

(a) To formulate policies, plans, and programs relating to the Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). mobilization, operation, and use of the Nepali Army and submit them to the Government of Nepal, (b) To submit suggestions to the Government of Nepal regarding the number and organizational structure of the Nepali Army, (c) To submit necessary suggestions to the Government of Nepal regarding the management of the Nepali Army, (d) To submit necessary suggestions to the Government of Nepal regarding the management of weapons, ammunition, and other military equipment of the Nepali Army, (e) To perform other functions as prescribed. (4) Deleted by Some Nepal Acts Amendment Act, 2072 (2015) (5) There shall be a Secretariat under the Ministry of Defence for conducting the business of the National Security Council. Other arrangements relating to the Secretariat shall be as prescribed. (6) The procedures relating to the meetings of the National Security Council shall be as determined by the National Security Council itself. 7. Form of Organization: (1) The organization of the Nepali Army shall be inclusive and national in character. (2) The Government of Nepal shall formulate necessary policies, plans, and programs to implement the provision under sub-section (1). (3) The organizational structure and authorized strength of the Nepali Army shall be as approved by the Government of Nepal. Provided that there shall be only one post of General, and that General shall be appointed as the Chief of the Army Staff. (4) The organization of the Nepali Army shall include the Chief of the Army Staff and the posts mentioned in Schedule-1. Chapter-3 Appointment, Functions, Duties and Powers of the Chief of the Army Staff 8. Chief of the Army Staff: Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). (1) The President shall appoint the Chief of the Army Staff on the recommendation of the Council of Ministers.

He/she shall be conferred the insignia of rank by the President. (2) The Chief of the Army Staff shall be the head of the Nepali Army. (3) In the event that the Chief of the Army Staff is on leave or the post falls vacant for any other reason, the senior officer of the Nepali Army designated by the Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). President on the recommendation of the

Council of Ministers shall act as the Chief of the Army Staff and assume the responsibilities. 9. Accountability to the Government of Nepal: (1) The Chief of the Army Staff shall be accountable to the Government of Nepal in respect of the duties and functions to be performed by him/her. (2) Before assuming his/her office, the Chief of the Army Staff shall take an oath before the Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). President in the format according to Schedule-2. 10. Functions, Duties and Powers of the Chief of the Army Staff: (1) Subject to the directions given by the Government of Nepal and the prevailing law, it shall be the function and duty of the Chief of the Army Staff to manage the Nepali Army. (2) The Chief of the Army Staff shall submit an annual report relating to the management of the Nepali Army to the Government of Nepal within the month of Baishakh each year, and the report so received shall be Amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 (2018). discussed by the Government of Nepal in the State Affairs and Good Governance Committee of the House of Representatives of the Federal Parliament. (3) Other functions, duties, and powers of the Chief of the Army Staff shall be as prescribed in this Act and the rules made under this Act. 11.

Age Limit and Tenure: (1) The Chief of the Army Staff shall remain in his/her post until the age of 61 years. (2) Subject to sub-section (1), the tenure of the Chief of the Army Staff shall be three years. (3) Notwithstanding anything contained in sub-section (2), if the Government of Nepal deems necessary, the President may, before the expiry of that period, retire the Chief of the Army Staff Added by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). on the recommendation of the Council of Ministers. An opportunity for a defense shall be given before such retirement. (4) The Chief of the Army Staff existing at the commencement of this Act shall remain in his/her post subject to sub-section (2). Chapter-4 Appointments and Terms of Service 12. Appointment and Filling of Posts: (1) There shall be a Recruitment Committee as prescribed for making recommendations for filling vacant posts at the officer level in the Nepali Army, chaired by the Chairperson of the Public Service Commission or a member of that Commission designated by the Public Service Commission, and for recommendations for filling posts below the officer level, chaired by the Chairperson or a member designated by the Public Service Commission, and including a representative designated by the Public Service Commission as a member. Amended by Some Nepal Acts Amendment Act, 2072 (2015). Provided that the written examination for recruitment shall be conducted by the Public Service Commission. (2) Other functions, duties, and powers of the Recruitment Committee under sub-section (1) shall be as prescribed. (3) Other arrangements relating to recruitment shall be as prescribed. (4) The qualifications required for appointment to various posts in the Nepali Army shall be as prescribed. 13. Disqualification: (1) The following person shall be deemed disqualified for appointment in the Nepali Army:- (a) A non-Nepali citizen, (b) Convicted of a criminal offense involving moral turpitude, (c) Dismissed from government service in a manner that disqualifies future government service, (d) Convicted of human rights violations, (e) Lacking the qualifications prescribed pursuant to sub-section (4) of Section 12. (2) Nothing contained in clause (a) of sub-section (1) shall be deemed to prevent the Government of Nepal from obtaining technical and expert services from non-Nepali citizens for a short term. 14. Appointing Authority: On the recommendation of the Recruitment Committee pursuant to Section 12 of this Act, the Government of Nepal shall appoint to posts at the officer level in the Nepali Army, and the prescribed officer shall appoint to posts at other levels. 15.

Grant of Commission: Subject to the provisions mentioned in this Act and the rules made under this Act, the Minister of Defence shall grant a Commission to an officer of the Nepali Army deemed qualified. 16. Taking Oath: Every person appointed to a post in the Nepali Army shall take an oath in the format prescribed in Schedule-2. 17. Period of Service: (1) Except as mentioned in Section 11, the age limit for officers serving in the Nepali Army shall be as mentioned in Schedule-3. (2) Subject to sub-section (1), the tenure of an officer

of the Nepali Army shall be as mentioned in Schedule-4. (3) Notwithstanding anything contained in sub-section (2), if the Chief of the Army Staff recommends to the Government of Nepal, stating reasonable grounds and reasons that the service of an officer who has served for a long period and is physically fit is necessary for the Nepali Army, the Government of Nepal may extend the tenure as per Schedule-5. 18. Removal from Service and Reduction in Rank: (1) The Government of Nepal may remove or dismiss any person serving in the Nepali Army from service. (2) The Chief of the Army Staff may reduce to a lower pay scale, reduce in rank, or remove from service any person serving in the Nepali Army, except officers. (3) An officer commanding a Company, Brigade, Regiment, or equivalent rank, or an officer with equivalent authority, may remove from service or reduce in rank any person under his/her command, except officers and Junior Commissioned Officers. (4) The Commanding Officer of a Unit or Sub-Unit may remove from service or reduce in rank soldiers of the rank of Hudda and below under his/her command. (5) While exercising the power under this section, it shall be done subject to this Act or the rules made under this Act. (6) An opportunity of defense shall be provided while taking action under this section. (7) After any person subject to the jurisdiction of this Act is released from duty or is about to be released, his/her Commanding Officer shall provide him/her a certificate in the prescribed format with prescribed details. 19.

Prohibition on Opening, Operating, and Participating in Associations and Organizations: (1) No person subject to the jurisdiction of this Act shall do the following acts:- (a) Open, operate, become a member of, support, or participate in programs organized by any association, organization, or body, (b) Participate in any meeting, make a speech, or participate in a demonstration organized by any person or group for political or similar other purposes, (c) Print any pamphlet, leaflet, or similar other types of documents. (2) Notwithstanding anything contained in clause (a) of sub-section (1), nothing shall be deemed to prevent any person subject to the jurisdiction of this Act, with the approval of the Government of Nepal and subject to this Act, from supporting any religious, social, cultural, or recreational association, organization, or body, or participating in programs organized by such association, organization, or body. 20. Training and Instruction: (1) Any person to be included in the organization of the Nepali Army shall be given training and instruction on subjects including military education, conduct, physical exercise, human rights, and international humanitarian law. (2) Arrangements relating to training and instruction under sub-section (1) shall be as prescribed. 21. Promotion, Leave, and Other Terms and Benefits of Service: Appointment, promotion, leave, and other terms and benefits of service in the Nepali Army shall be as prescribed. Chapter-5 Facilities and Immunities 22. Protection for Acts Done in Course of Duty: If any person subject to the jurisdiction of this Act causes death or injury to anyone through any act done in good faith in the course of performing his/her duty, no case shall be filed against such person in any court. Provided that the offences mentioned in Sections 62 and 66 shall not be deemed acts done in good faith in the course of performing duty. Explanation: For the purpose of this section, "any act done in good faith in the course of performing duty" includes acts done during internal security or self-defense, flag march, patrolling, and sentry duty, along with acts done while performing duty. 23.

Immunity from Arrest: (1) No Chairperson or member of a Military Court, Judge Advocate, or any person connected with the proceedings of a Military Court, their legal practitioner, heir, or witness summoned to appear under a summons issued by a Military Court shall be arrested by order of any court or quasi-judicial authority while going to, attending, or returning from the Military Court. (2) If information is received that a person has been arrested contrary to sub-section (1), the Military Court may request the relevant authority to immediately release the person so arrested. (3) Any person subject to the jurisdiction of this Act who is on active service shall not be detained by any decision, judgment, or order of any court or quasi-judicial authority for debts owed by him/her. (4) If information is received that a person who should not be arrested under

sub-section (1) has been arrested, the other court or quasi-judicial authority shall immediately release him/her. 24. Not to be Attached or Confiscated: By a decision, judgment, or order of any court other than a Military Court or quasi-judicial authority, the weapons, clothing, military equipment, animals, vehicles, and goods including salary, allowance used by any person subject to the jurisdiction of this Act in the course of performing his/her duty shall not be wholly or partially attached or confiscated. 25. Immunities and Facilities for Reserve Force: The immunities and facilities under sub-section (3) of Section 23 and Section 24 shall also be available to a person in the Reserve Force when called for training or work by the Government of Nepal, while going, coming, or remaining on duty. 26. Priority in Legal Cases: (1) If any person serving in the Nepali Army, being a party to a case pending in any office or court, appears after obtaining leave for that purpose from the authority authorized to grant leave, and files an application attaching the letter of leave approval and details of the case requesting finalization of the case within the leave period, the relevant office or court shall also prioritize finalizing such case within the leave period. (2) No fee shall be charged for applications submitted under sub-section (1). (3) If the case cannot be finalized within the leave period, the office or court shall inform accordingly. (4) If a question arises regarding the authority authorized to grant leave, the decision of the Brigade Commander, Regimental Commander, or equivalent authority shall be final. 27.

Complaint Regarding Grievance or Injustice: (1) If any officer subject to the jurisdiction of this Act suffers a grievance in any matter from the Commanding Officer or a superior officer, he/she may file a complaint against it before his/her Commanding Officer. (2) A person not satisfied with the decision given by the Commanding Officer or the officer regarding the complaint under sub-section (1) may file a petition to the Chief of the Army Staff. (3) In the case of a person below the officer level, he/she may file a complaint before the relevant officer. (4) When filing a complaint under sub-section (3), if the grievance caused by the officer is not heard, he/she may file a complaint before the Commanding Officer, and if not heard by the Commanding Officer either or not satisfied with his/her decision, may file a complaint before the Commanding Officer at the next higher level, and upon receiving such a complaint, the Commanding Officer shall give a copy thereof to the complainant and forward it to the higher level. If the Commanding Officer does not forward such a complaint, disciplinary action shall be taken against him/her. (5) Regarding the complaint received under sub-section (1) and (4), the officer hearing the complaint shall investigate and resolve the grievance of the complainant, and if necessary, submit the complaint to an officer superior to him/her. (6) If a complaint is to be made against the officer hearing the complaint himself/herself, the aggrieved person may file a complaint before an officer superior to such officer. (7) The decision made by the Chief of the Army Staff regarding a complaint under this section shall be final. (8) The method of hearing complaints shall be as prescribed. (9) If the Government of Nepal deems reasonable, it may review the decision made under this section. 28. Preservation of Facilities Obtained Under Prevailing Law: The facilities obtained under this Chapter shall not be affected by other facilities obtained under prevailing law. Chapter-6 Military Welfare Fund 29.

Establishment and Operation of Welfare Fund: (1) A Welfare Fund shall be established for welfare-related activities of serving and retired persons of the Nepali Army and their families. (2) The Fund under sub-section (1) shall consist of the following amounts:- (a) Amount deducted as a prescribed percentage from the amount received by the Nepali Army for services rendered while deployed in peacekeeping operations in any part of the world at the call of the United Nations, (b) Amount saved from operating welfare activities from interest received on amounts deposited in various banks and financial institutions, (c) Amount earned from investment in prescribed welfare activities, (d) Amount kept in various banks and financial institutions as principal from the month of Ashadh of the year 2032 (1975) until the commencement of this Act, and the interest amount received therefrom, (e) Movable and immovable property in the name of the institution designated by the Nepali Army Headquarters for welfare activities and the amount increased therefrom, (f)

Movable and immovable property currently used by the Nepali Army for welfare activities and the amount increased therefrom. (3) To operate the Welfare Fund under sub-section (1), there shall be a seven-member Military Welfare Fund Operation and Management Committee as follows:- (a) Chief of the Army Staff ? Chairperson (b) Two persons nominated by the Patron from among retired and serving military officers ? Member (c) Two persons nominated by the Chief of the Army Staff from among serving and retired military officers ? Member (d) Representative, Ministry of Finance (Gazetted First Class Officer) ? Member (e) Representative, Ministry of Defence (Gazetted First Class Officer) ? Member (4) To assist in the daily operation of the Committee, there shall be a Welfare Planning Directorate within the Nepali Army Headquarters. Its functions, duties, and powers shall be as determined by the Committee. (5) The amount deposited in the Welfare Fund under sub-section (2) shall be spent for the welfare of serving and retired persons of the Nepali Army and their families as prescribed. Explanation: For the purpose of this section, "family" means the spouse, son, daughter, and mother and father whom the retired or serving person of the Nepali Army himself/herself has to support, and in the case of a female employee, includes her father-in-law and mother-in-law as well. 30. Patron of the Fund: The Prime Minister shall be the Patron of the Fund, and the Minister looking after the Ministry of Defence shall be the Co-patron. 31.

Functions, Duties and Powers of the Committee: The functions, duties, and powers of the Committee shall be as follows:- (a) To formulate, implement, coordinate, and monitor welfare activities, prescribed income-generating activities, and welfare schemes, (b) To perform welfare activities necessary for the families of soldiers who died or became disabled while engaged in military activities, (c) To reduce, increase, or remove facilities and concessions under welfare activities, (d) To formulate and implement procedures and directives necessary for conducting welfare activities, income-generating activities, and welfare schemes, (e) To conduct welfare activities by entering into an agreement with the Nepali Army Headquarters on land and physical infrastructure being used by the Nepali Army, (f) To form administrative, financial, and technical units as needed for conducting welfare activities, income-generating activities, and welfare schemes, appoint necessary manpower for such units, and determine their service, terms, and remuneration, (g) To appoint experts for the effective implementation of welfare activities, welfare schemes, and income-generating activities, and determine their service, terms, and remuneration, (h) To deploy serving military personnel as necessary for the security of places where welfare activities, income-generating activities, and welfare schemes are conducted, (i) To acquire, purchase, lease, use, and sell or dispose of movable and immovable property subject to this Act, (j) To perform other functions as prescribed. 32. Accounts and Audit of the Fund: (1) The daily income and expenditure accounts of the Fund shall be kept according to prevailing law, and the internal audit of the Fund shall be as determined by the Committee. (2) The final audit of the Fund shall be conducted by the Office of the Auditor General. 33. Submission of Annual Report: Annually, the Committee shall submit a report including the income, expenditure, and progress details of the Fund to the Patron, and a copy thereof shall also be made available to the Amended by Some Nepal Acts Amendment Act to Make Compatible with the Constitution of Nepal, 2075 (2018). State Affairs and Good Governance Committee of the House of Representatives of the Federal Parliament. 34. Delegation of Powers: Any of the powers conferred on the Committee under this Chapter may, as necessary, be delegated to the Welfare Planning Directorate. 35.

Circumstances for Deprivation of Facilities and Concessions: (1) In the following circumstances, a serving or retired military person or his/her family may be deprived wholly or partially of the facilities and concessions provided under programs operated under welfare activities:- (a) If proven to have committed an act detrimental to the Nepali Army, (b) If proven to have acted contrary to the Constitution and this Act, (c) If proven to have misused the facilities and concessions obtained under this Chapter, (d) If punished for an

offense against the state. (2) Notwithstanding anything contained in sub-section (1), only that member of the family of a serving or retired military person who has committed the act mentioned in Amended by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).sub-section (1) shall be deprived of the facilities and concessions provided under programs operated under welfare activities. 36. Other Arrangements: Other arrangements relating to the use, operation, and management of the Military Welfare Fund shall be as prescribed. Chapter-7 Offences 37. Deemed to have Committed an Offence: If a person subject to the jurisdiction of this Act commits any act under Sections 38 to 65, he/she shall be deemed to have committed an offence under this Act. 38.

Offences Relating to the Enemy: Commission of any of the following acts shall be deemed to be an offence relating to the enemy:- (a) Deserting or cowardly surrendering any garrison, fort, post, or place entrusted to one's security to the enemy, or inducing or compelling any Commanding Officer or any other person to do or cause to be done such an act, (b) Shamefully throwing away arms, ammunition, equipment in the face of the enemy, or displaying other disgraceful conduct indicating cowardice, (c) Spreading false reports during war or military operations with the intention of causing alarm or panic in a garrison, camp, or regiment, (d) Corresponding or exchanging secret information with any person or enemy bearing arms against the State of Nepal in a manner that betrays the country, or committing any other such act, (e) Directly or indirectly helping the enemy by giving them arms, ammunition, cash, goods, or any kind of supplies, (f) Committing any act that renders the Nepali Army or any of its forces or parts unsuccessful, (g) Treacherously or with cowardice raising a flag of truce before the enemy, (h) Willingly fraternizing or working with a captured enemy or assisting the enemy, (i) Knowingly harboring or protecting any enemy who is not a prisoner of war, (j) Sleeping on one's post while on sentry duty during battle or terror, or consuming any kind of narcotic drug or intoxicating substance, (k) Knowingly inducing or compelling any person subject to the jurisdiction of this Act to prevent, obstruct, or discourage him/her from carrying out operations against the enemy, (l) Leaving without authorized leave from one's Commanding Officer while on active service, or quitting one's post, guard, picket, patrol, or group without proper relief or leave. 39.

Mutiny: Commission of any of the following acts shall be deemed to be an offence of mutiny:- (a) Taking part in a mutiny, (b) Mutinying or causing mutiny in concert with any person of the Nepali Army or any force assisting it, or inciting or conspiring to do or cause to be done so, (c) Failing to use utmost endeavors to suppress a mutiny when present at the place of mutiny, (d) Knowing or having reasonable grounds to believe that a mutiny is intended or a conspiracy is ongoing, failing to give information thereof to one's Commanding Officer or superior officer, (e) Deviating from patriotism and performance of duty, or causing or abetting a person to deviate from patriotism and performance of duty. 40. Other Offences Relating to the Enemy: Commission of any of the following acts shall be deemed to be other offences relating to the enemy:- (a) Knowingly becoming a prisoner of the enemy through disobedience of orders without having been duly cautioned beforehand, or through willful neglect of duty, or failing to return after becoming a prisoner of the enemy when an opportunity to return exists, (b) Communicating with the enemy without proper authority, or providing information in any other manner, or failing to immediately report such communication or action to one's Commanding Officer or superior officer despite knowing about it, (c) Raising a flag of truce without proper authority. 41. Offences Against Active Service: Commission of any of the following acts shall be deemed to be an offence against active service:- (a) Forcing or compelling a security guard or sentry, (b) Entering any house or place with intent to loot, (c) Sleeping on one's post while on sentry duty, or consuming any kind of narcotic drug or intoxicating substance, (d) Leaving one's guard, picket, patrol, or post duty without permission from a superior officer, (e) Knowingly or negligently giving an alarm signal or information in a camp, garrison, or quarter, or spreading unnecessary alarming or panicking news, (f) Giving a parole,

watchword, or countersign to an unauthorized person, or knowingly giving a false or different parole, watchword, or countersign to an authorized person. 42. Offence of Desertion: (1) Commission of any of the following acts shall be deemed to be an offence of desertion:- (a) Deserting 54.

Offense Relating to False Statement or Evidence: If any person falling within the jurisdiction of this Act, after taking an oath in a military court, gives any false statement or evidence, or gives a statement or evidence without reasonable cause to believe it to be true, which is believed or known to be false, such person shall be deemed to have committed the offense of giving a false statement or evidence. 55. Offense of Obtaining Appointment by Deception: If any of the following acts are committed, it shall be deemed to have committed the offense of obtaining appointment by deception: - (a) Being appointed to another corps or department, other than the corps or department in which one is currently serving, without being relieved from duty through the regular procedure from the one's current corps or department, or without fulfilling the necessary conditions for appointment, (b) While appointing a person to any unit of the Nepali Army, if that person, knowing or having reasonable cause to believe that there exists a situation where such person is deemed to have committed an offense under this Act, becomes involved in arranging the appointment of such person to any unit of the Nepali Army, (c) If it is established that false details were knowingly given in the recruitment application form, (d) If forged or fake certificates are submitted for the purposes of recruitment, promotion, training, or other service-related purposes. 56. Offense of Escape from Custody: If a person escapes while in lawful custody, it shall be deemed to have committed the offense of escape from custody. 57. Offense Relating to False Accusation: If any of the following acts are committed, it shall be deemed to have committed the offense relating to false accusation: - (a) Knowing a matter to be false, or having reasonable cause to believe it to be false, making such a false accusation against a person falling within the jurisdiction of this Act, (b) Knowing a matter to be false, or having reasonable cause to believe it to be false, filing a complaint under Section 27 that is detrimental to the character of any person falling within the jurisdiction of this Act, or giving false evidence, or knowingly concealing the true facts known in relation thereto. 58.

Offense of Absence Without Leave (Desertion/AWOL): If any of the following acts are committed, it shall be deemed to have committed the offense of absence without leave: - (a) Remaining absent without approved leave, (b) Being absent beyond the period of approved leave without sufficient cause, (c) While on leave, upon receiving an order from the relevant authority summoning for military duty for a formation, unit, or any of its parts, failing to report immediately without sufficient cause, (d) Without sufficient cause, failing to appear at the designated place for duty or exercise, or at the parade at the appointed time, (e) Leaving a parade or marching column without the permission of a superior officer or without sufficient cause, (f) While at any camp, garrison, or other place, being found present, without a pass or written permission from a superior officer, at a place prohibited or outside the limits prescribed under any general, local, or other orders, (g) While assigned to an educational institution for studies, remaining absent without leave approved by a superior officer or without proper cause. 59. Offense Relating to Military Court: If any of the following acts are committed, it shall be deemed to have committed the offense relating to a military court: - (a) A person required to appear as a witness in a military court, upon due summons or order being issued, remaining absent without reasonable cause, (b) Refusing to take an oath in a military court, (c) Disobeying an order to produce or deliver to a military court any document in one's custody, (d) In the capacity of a witness, refusing to answer a question lawfully asked, (e) Using threatening language, obstructing or hindering the proceedings of a military court, thereby insulting or showing contempt towards the military court, (f) Ignoring the execution of a judgment or order passed by a military court. 60. Offense of Illegal Withholding of Pay: If a person responsible for paying salary to a person falling within the jurisdiction of this Act unlawfully withholds the salary payable, by not paying it on time or refusing to pay it, such person shall be deemed to have committed

the offense of illegal withholding of pay. 61.

Offense of Irregular Arrest or Detention: If any of the following acts are committed, it shall be deemed to have committed the offense of irregular arrest or detention: - (a) Arresting or detaining a person and failing to present the case before the relevant authority for investigation, or delaying the prosecution of the case without cause, (b) A person who causes another to be kept in military custody failing to submit details to the officer authorized to order military custody and the Judge Advocate General, explaining the proper reason for such custody immediately, or as soon as possible, and in any case within twenty-four hours, except for reasonable cause. 62. Special Provisions Relating to Corruption, Theft Removed by the Act to Amend Some Nepal Acts to Make them Compatible with the Constitution of Nepal, 2075.: (1) If a person commits an act deemed to constitute corruption, theft Removed by the Act to Amend Some Nepal Acts to Make them Compatible with the Constitution of Nepal, 2075. under the prevailing law, such person shall be deemed to have committed the offense of corruption, theft Removed by the Act to Amend Some Nepal Acts to Make them Compatible with the Constitution of Nepal, 2075.. (2) For the purpose of investigating and inquiring into the offenses under sub-section (1) and filing cases, there shall be a committee as follows: - (a) Deputy Attorney General designated by the Government of Nepal ? Chairman (b) Head of the Legal Branch of the Ministry of Defense ? Member (c) Representative of the Judge Advocate General, of at least the rank of Lieutenant Colonel ? Member (3) The representative mentioned in clause (c) of sub-section (2) must be a person not associated with the military court related to the case. (4) The Special Military Court constituted under sub-section (1) of Section 119 shall have the authority for initial proceedings and adjudication of cases under sub-section (1). (5) The committee under sub-section (2) shall have the same powers as the officer authorized to investigate and inquire into respective cases under the prevailing law. 63.

Miscellaneous Offenses: (1) If any of the following acts are committed, it shall be deemed to have committed a miscellaneous offense: - (a) A person commanding any post or march, misbehaving, assaulting, or otherwise harassing any person under their command, or creating a riot or disturbance in any public place, or trespassing; failing to submit a complaint regarding compensation for damage caused by such riotous entry to the relevant authority, or failing to provide compensation, (b) Disturbing the sanctity of a religious place, or knowingly insulting anyone's religion in any other manner, or hurting their religious sentiments, (c) A soldier of the rank below Jamadar, while not engaged in duty, carrying weapons or equipment while going to or coming from the vicinity of a camp or cantonment or city market without the order of the relevant authority, (d) Taking or agreeing to take, directly or indirectly, any bribe or gratification in exchange for promising to arrange appointment, promotion, leave approval, or any other benefit for someone in the Nepali Army, (e) Causing any harm or damage to the person or property of a citizen or resident of the country where one is serving. (2) In addition to the acts mentioned in sub-section (1), if a soldier of the rank of Billedar or below commits any other prohibited act during military operations, beyond those specified in this Chapter, it shall be deemed to have committed a miscellaneous offense. 64. Attempt to Commit Offense: If a person attempts to commit any offense mentioned in this Chapter, or does any act for that purpose, it shall be deemed an attempt to commit such offense. 65. Abetment to Commit Offense: If a person abets the commission of any offense mentioned in this Chapter, it shall be deemed to have committed the offense of abetment. 66.

Offenses under Other Laws: (1) In cases where a person falling within the jurisdiction of this Act commits offenses under Sections 38 to 61, and unless such offenses occur exclusively between military personnel, the following offenses committed by a person within the jurisdiction of this Act shall fall under the jurisdiction of other courts: - (a) Murder, (b) Rape, Added by the Act to Amend Some Nepal Acts to Make them Compatible with the Constitution of Nepal, 2075.(c) Torture, Added by the Act to Amend Some Nepal Acts to Make them

Compatible with the Constitution of Nepal, 2075.(d) Disappearance. (2) If ordered by the body or investigating officer responsible for the criminal investigation of offenses under sub-section (1), persons accused of involvement in such offenses must be handed over by the Commanding Officer of their place of work, or the head of department or relevant authority, upon request from the said body or officer. Even if a person is retired or an absconder, this shall not hinder investigation and action under prevailing law. (3) A person within the jurisdiction of this Act who is under investigation under the jurisdiction of another court shall remain automatically suspended for the period of detention and until the final verdict in the case, if the case is heard in court. (4) Notwithstanding the commencement of investigation into an offense under the jurisdiction of another court concerning a person within the jurisdiction of this Act, nothing in this section shall be deemed to prevent the formation of a Court of Inquiry to investigate offenses under the jurisdiction of this Act, and to take necessary actions against such person. Chapter-8 Formation and Jurisdiction of Military Court 67.

Formation of Military Court: (1) For the hearing and adjudication of cases related to offenses under Chapter-7, the following military courts shall be formed: - (a) General Military Court consisting of five officers, including at least one General Officer, two Major Generals or Brigadier Generals, and two Colonels. (b) Summary General Military Court consisting of at least three officers, including at least two officers of the rank of Colonel, (c) District Military Court consisting of at least three officers from among those who have held a commissioned rank for at least two years, (d) Summary Military Court consisting of a single person who is the Commanding Officer of any department, formation, or unit of the Nepali Army. (2) In the military courts under clauses (a) and (b), at least one officer should, if available, be a graduate in law. (3) To assist in the proceedings of the Summary Military Court, two officers or two warrant officers, or a total of two persons consisting of one from each rank, shall be present. (4) A military court shall not conduct proceedings and adjudicate cases with a number of members less than that specified in sub-section (1). 68. Jurisdiction of Military Court: The jurisdiction of the military court shall be as follows, except for the cases mentioned in Sections 62 and 66 of this Act: - (a) The General Military Court and the Summary General Military Court shall have the authority to conduct prosecution, hearing, proceedings, and adjudication of cases related to offenses committed by persons falling within the jurisdiction of this Act, and to award punishment. (b) The District Military Court shall have the authority to conduct prosecution, hearing, proceedings, and adjudication of cases related to offenses committed by persons falling within the jurisdiction of this Act, other than officers and warrant officers, where the maximum punishment is imprisonment for up to two years, and to award punishment. (c) Subject to the provisions written in the following sub-clauses, the Summary Military Court shall have the authority to conduct prosecution, hearing, proceedings, and adjudication of cases related to offenses committed by persons falling within the jurisdiction of this Act, other than officers and warrant officers, and to award punishment: - (1) If the person summoning the military court is of the rank of Brigadier General or above, cases punishable with imprisonment up to one year, (2) If the person summoning the military court is of a rank lower than Brigadier General, cases punishable with imprisonment up to six months. 69.

Decision to Prosecute in Military Court or Other Court: (1) If a dispute arises regarding whether to prosecute an offense under this Act in a military court or another court, the case shall be prosecuted in the other court. (2) If a case is to be filed in another court pursuant to sub-section (1), the accused shall be suspended from service and handed over to the court where the case is to be filed. 70. No Double Jeopardy for Same Offense: Once a person falling within the jurisdiction of this Act has been prosecuted, heard, proceeded against, and adjudicated by a military court for any offense under Sections 38 to 65 of this Act, or has been given departmental punishment, such person shall not be proceeded against again for the same offense. 71. Limitation Period for Prosecution: (1) Except for offenses under Sections 39, 42, 46, 49, 55, 56, and 62, a

case shall not be prosecuted in a military court after the expiration of three years from the date of the commission of the offense. (2) For the purpose of calculating time under sub-section (1), the period during which the accused was a prisoner of war, was held by the enemy in their territory, or was absconding without being apprehended for the offense, shall not be counted. 72. When Prosecution Allowed: (1) For an offense committed while a person was within the jurisdiction of this Act, such person may be placed in military custody and prosecuted even after ceasing to be within the jurisdiction of this Act. (2) Notwithstanding anything written in sub-section (1), except for an offense under Section 39, 42, or 55, if a case is not initiated within six months of the person ceasing to be within the jurisdiction of this Act, the offender shall not be prosecuted. (3) If a person falling within the jurisdiction of this Act is sentenced to imprisonment by a military court, and is subsequently removed from service, discharged, or otherwise ceases to be within the jurisdiction of this Act, such person shall be deemed to remain within the jurisdiction of this Act until the completion of the imprisonment term, and the sentence may be executed or caused to be executed. 73.

Authority to Convene a Military Court: (1) The following authorities shall have the power to convene a military court: - (a) The Chief of the Army Staff, or an officer authorized by him, unless otherwise directed by the Government of Nepal, for a General Military Court, (b) The following officers for a Summary General Military Court, unless otherwise directed by the Government of Nepal: - (1) An officer authorized by the Chief of the Army Staff, (2) The Commanding Officer engaged in military operations, or an officer authorized by him, (3) An officer commanding any unit engaged in military operations who determines, after due consideration of military discipline and necessity, that it is not practical for a General Military Court to prosecute a particular offense. (c) The officer authorized to convene a General Military Court under clause (a), or an officer authorized by him, for a District Military Court, (d) Any Commanding Officer of a department, formation, or unit of the Nepali Army for a Summary Military Court. (2) The officer authorized to convene a military court shall convene the military court within thirty days from the date the condition necessitating the convening of the military court arises. (3) When delegating authority under clauses (a) and (b) of sub-section (1), the delegating authority may specify conditions as needed. Chapter-9 Investigation, Inquiry, and Case Filing 74. Keeping in Military Custody: (1) A person falling within the jurisdiction of this Act may be kept in military custody if accused of any offense under Chapter-7. (2) Any officer of a higher rank than the person accused of an offense may order such person to be kept in military custody. (3) Notwithstanding anything written in sub-section (2), an officer of a lower rank may order the detention in military custody of a person involved in a quarrel, riot, or disorder, even if that person is of a higher rank. (4) If it is necessary to detain, according to law, a person who must be prosecuted in another court for an offense not heard by a military court, from the time of investigation to the filing of the case, such person may be suspended from service and kept in military or police custody by order of such court. If required to be produced before the court while in military custody, the concerned military officer shall arrange for the production. Provided that, after the case is filed, such person shall not be kept in military custody. (5) If the case is to be filed in a military court, it shall be sent to the military court; if in another court, it shall be sent to that other court. 75. 76.

Request for Arrest: (1) If a Commanding Officer needs to arrest a person accused of an offense, he may request the Chief District Officer of the district where the accused is located; upon such request, the relevant Chief District Officer shall arrest the accused and hand them over to the relevant officer. (2) The Commanding Officer of the formation, unit, or sub-unit of an absconder who has left service or deserted may provide details of the absconder and request the Chief District Officer to arrest such absconder; upon such request, the relevant officer shall arrest the absconder and hand them over to the relevant officer. (3) Notwithstanding anything written in sub-section (1) or (2), if a police officer has reasonable cause to believe that a person has left service or absconded after committing any other offense, such police officer may arrest

such person without a warrant and shall hand them over to the Chief District Officer for necessary action. 77. Inquiry into Absence Without Leave: If a person remains absent without approved leave for more than thirty days, a Court of Inquiry shall be formed as soon as possible to conduct an investigation. The court officer shall, upon taking an oath, conduct an investigation and make a determination regarding whether the person was absent without approved leave or without other sufficient cause, and also regarding the shortage or surplus of government property, arms, ammunition, equipment, instruments, clothing, or other items in the person's custody. The Commanding Officer shall record the decision in the military court records of the relevant corps or department. 78. Provost Marshal: (1) Unless otherwise directed by the Government of Nepal, the Chief of the Army Staff or an officer designated by him may appoint the Provost Marshal. (2) It shall be the duty of the Provost Marshal to take charge of persons in custody for any offense, to maintain order and discipline in the military, and to prevent acts that disrupt order and discipline by persons enrolled in or serving in the Nepali Army. (3) The Provost Marshal may, at any time, arrest for prosecution a person who has committed an offense or is accused of an offense, and shall execute punishments awarded by a military court or an officer authorized to award departmental punishment. Chapter-10 Procedure of Military Court 79.

Seat and Hearing of Military Court: (1) A military court may hold its seat at any place, inside or outside Nepal, during the course of a trial. (2) Except when necessary for the protection of national security, public order, and the rights of the victim, the hearing of a military court shall generally be open. 80. President of Military Court: (1) The senior-most officer among the officers sitting in the military court shall preside over the military court. (2) In the absence of the senior officer presiding over the military court, the next senior officer, subject to the provisions of Section 67, shall preside over the military court. 81. Presence of Judge Advocate General: (1) In every General Military Court, Summary General Military Court, and District Military Court, the Judge Advocate General, or a Judge Advocate officer deputed or designated by the Judge Advocate General, shall be present as the Judge Advocate. (2) If an accused prosecuted for an offense requests the Defense Branch of the Judge Advocate General to assign a Judge Advocate officer of their choice for their defense in the military court, the Judge Advocate General shall assign a Judge Advocate officer. Where a Judge Advocate officer is so assigned, such Judge Advocate officer shall conduct the defense on behalf of the accused in the military court. 82. Right of Challenge: (1) After a case is presented for trial before a military court, the names of the President and members of the military court shall be read out to the accused, and the accused shall be asked whether they have any objection regarding the President or any member. (2) If the accused raises an objection under sub-section (1) regarding the President or any member, a record shall be made of the reasons for the objection and the reply given by the challenged President or member. The unchallenged President and members shall, in the absence of the challenged President or member, deliberate and decide on the matter of such challenge. (3) If at least fifty percent of the members accept the accused's challenge, the position of the challenged President or member shall become vacant. Another officer shall be appointed to the vacant position, and the procedure for challenge under sub-section (1) shall be repeated regarding the newly appointed President and members. (4) After the challenge procedure under sub-section (2) or (3) is completed, the military court shall commence the trial. 83. Oath: Before conducting the trial, the President and members of the military court and the Judge Advocate shall take an oath as prescribed. 84. Decision Making Process: (1) The decision of a military court shall be based on a majority vote.

If the votes are equal, the decision shall be deemed to be in favor of the accused. Provided that, for the following matters, it shall be as follows: - (a) For a sentence of Amended by the Act to Amend Some Nepal Acts to Make them Compatible with the Constitution of Nepal, 2075. life imprisonment to be passed by a General Military Court, at least a two-thirds majority is required. (b) For a sentence of Amended by the Act to

Amend Some Nepal Acts to Make them Compatible with the Constitution of Nepal, 2075. life imprisonment to be passed by a Summary General Military Court, unanimity is required. (2) Notwithstanding anything written in sub-section (1), on procedural matters other than the sentence and verdict, the opinion supported by the President shall prevail. (3) When a sentence is passed by a military court, the Judge Advocate present in the military court, or his representative, may express their separate opinion. (4) During the investigation and hearing of a case in a military court, the criminal justice rights of the accused shall be protected, and reasonable opportunity shall be given to present defense evidence. 85. Judicial Notice: A military court may take judicial notice of the general military knowledge present among the President and members. 86. Issuance of Summons: (1) The officer who convened the military court, or the President of the military court, or the Judge Advocate General, or the Commanding Officer of the accused, may issue a summons to a concerned person to produce any document or other thing, or to appear as a witness at a specified place and time. (2) If any specific document or other thing in the custody of a witness needs to be produced, that matter must be clearly mentioned in the summons. (3) If a witness is a person within the jurisdiction of this Act, the summons shall be sent to their Commanding Officer, who shall serve such summons. (4) If information is available that a witness is within the area of a Chief District Officer, the summons for such witness shall be sent to that Chief District Officer, who shall cause the summons to be served on such witness. (5) Every person giving testimony as a witness in a military court shall be sworn in as prescribed before giving a statement. 87.

Commission for Examination of Witnesses (Interrogatories): (1) If, during the course of a trial, it appears that producing a witness before the military court to give evidence would cause unnecessary delay, expense, or inconvenience, the military court may order the Judge Advocate to examine such witness by means of interrogatories (commission). (2) Upon an order under sub-section (1), the Judge Advocate may request the relevant Chief District Officer to serve interrogatories on the witness; upon such request, the Chief District Officer shall cause the commission to be executed according to the prevailing law. (3) Among the questions the accused or their legal practitioner wishes to raise, the military court shall include in the interrogatories those questions relevant to the case. (4) The accused's legal practitioner or agent, or the accused themselves if not in custody, may appear before the Chief District Officer and cross-examine the witness. (5) After the process of taking statements according to the interrogatories is completed, the Chief District Officer shall send the interrogatories to the Judge Advocate. (6) The interrogatories received under sub-section (5) shall be forwarded by the Judge Advocate to the relevant military court. If the military court has been dissolved, they shall be forwarded to another court trying the case. The received interrogatories shall be attached to the record by the military or other court, and the legal practitioner or accused may inspect them if they wish. (7) The military court may adjourn the trial for a reasonable time necessary for the return of the interrogatories. 88. Presumption Regarding Signature: In any proceeding under this Act, the signature on any application, certificate, arrest warrant, correspondence, or any other document made by any officer serving in any service of the Government of Nepal shall, unless proven otherwise, be deemed to be that officer's signature. 89.

Documents Deemed Evidence: In cases tried by a military court, the contents written in the following documents shall be taken as evidence: - (a) Details mentioned in the attestation form by the concerned person at the time of appointment, (b) The original Attestation Form, or a copy thereof certified as "true copy of the original" by the officer responsible for the form, (c) The contents of any letter, correspondence, or other document signed by the Chief of the Army Staff or an officer designated by him, on behalf of the Government of Nepal, regarding service in the Nepali Army, discharge, or relief from duty, (d) The contents mentioned in the military order registered in the books of the Nepali Army or published in the Nepal Gazette, or in the

military order or Nepal Gazette recorded in such books, regarding the status, rank, and appointment of warrant officers or other ranks, (e) The contents mentioned in the Regimental Book, signed by the Commanding Officer or the officer responsible for maintaining records, (f) The contents mentioned in a copy of the Regimental Book certified as "true copy of the original" by the officer responsible for the Regimental Book, (g) The contents mentioned in a letter signed and certified by such officer, person, or the Commanding Officer of that unit of the Nepali Army, concerning the surrender or apprehension of a person falling within the jurisdiction of this Act who is being tried for an offense under Sections 42 and 58, stating the true facts regarding the place, date, and description of clothing worn by the person at the time of surrender or apprehension, (h) The contents mentioned in a letter signed and certified by a police officer, stating the true facts regarding the place, date, and description of clothing worn by the person at the time of surrender to or apprehension by the head of a police station, regarding a person falling within the jurisdiction of this Act who is being tried for an offense under Sections 42 and 58, (i) The contents mentioned in a report duly obtained from a forensic expert or forensic laboratory submitted for inspection or investigation. 90.

Requesting Information from Government Officials: (1) If a person accused of an offense under Sections 42 and 58 requests an inquiry with any official of the Government of Nepal regarding the matter, or if the military court itself deems it reasonable to inquire into the matter, the court may request necessary information from such official and may adjourn the trial until such information is received. (2) Information obtained under sub-section (1) shall be treated as a statement given before the military court. (3) If the military court is dissolved before receiving information under sub-section (2), or if the military court omits to complete the procedure under this section, the officer who convened the military court may annul the proceedings and order a re-trial. 91. Evidence of Previous Punishment and Character: (1) When passing judgment on any accused person prosecuted for an offense under Chapter-7, the court may ascertain whether such accused was previously convicted or acquitted by a military or other court, or received departmental punishment, and may take into account the decision therein as evidence. For this purpose, the military court may also take into consideration the character of the accused and their past activities. (2) The evidence under sub-section (1) may be oral, or written in the books of a military court or other government books, or a certified extract of such books, and it shall not be necessary to give prior notice to the accused that the previously adjudicated offense, or the character and past activities of the accused, may be taken as evidence. (3) If the Summary Military Court deems it appropriate, it may, regarding any previous judgment concerning the accused, record information received regarding such judgment, the accused's character, and past activities under this Act without requiring formal proof. 92. Application of Evidence Act, 2031: While taking evidence during the trial of an offense under this Act, the military court shall follow procedures under this Act where provisions exist, and in other matters, procedures according to the Evidence Act, 2031. 93.

Defense of Insane Accused: (1) If, during a trial by a military court, it appears that the accused is incapable of making a defense due to insanity, or that the accused committed the act due to insanity and was incapable of knowing the nature of the act or that it was wrong and contrary to law, the military court shall make a record (parcha) in this regard. (2) The President of the military court, or in the case of a Summary Military Court, the officer conducting the trial, shall immediately submit the record made under sub-section (1) to the officer authorized to confirm the case or the officer under sub-section (3) of Section 115. (3) If the officer authorized to confirm the case does not confirm the report received under sub-section (2), such officer may take necessary action to have the case of such accused tried by the same or another military court. (4) If the contents mentioned in the record submitted under sub-section (2) are confirmed by the Summary Military Court, the confirming officer shall order the accused to be kept in custody and submit it to the Government of Nepal, Ministry of Defense, for approval. (5) After receiving the report under sub-section (4), the Ministry of

Defense may order the accused to be kept in custody in a mental hospital or other suitable safe place. 94. Trial of Insane Accused: (1) If a report is received from a physician that an insane accused kept in custody under Section 93 is capable of defending against the charges against them, or if the head of the mental hospital or prison certifies that the insane accused kept in custody in a mental hospital or prison can defend against the charges against them, the Senani, Corps Commander, Paltan Commander, or Brigade Commander of the area where the accused is located, or any other officer in their place, may order the case to be tried for the original charges by the same or another military court. For offenses other than those under this Act, covered by other prevailing laws, they may order trial by another court. (2) The order issued under sub-section (1) shall be sent to the Ministry of Defense for information. 95.

Release of Insane Accused: The Ministry of Defense may release an accused kept in custody under Section 93, or keep them in custody, or send them to a mental hospital if not already there, based on a physician's report and if the head of the mental hospital or prison certifies that the accused is discharged or cannot cause harm to themselves or others. 96. Handing Over Insane Accused to Heir or Guardian: If any heir or guardian of an accused kept in custody under Section 93 petitions to keep or take charge of the accused under their supervision, and the Ministry of Defense is satisfied regarding the supervision of such accused, that they will not cause harm to themselves or others, and will present them for check-up before the designated officer at the specified time and date, the Ministry may hand over the accused to their heir or guardian. 97. Auction and Disposal of Property Related to the Offense: (1) The military court shall ensure the security of property related to the offense presented before it during the trial. (2) If the property kept for security under sub-section (1) is perishable, the military court may order such property to be sold by auction and the proceeds credited to the government account. (3) After the completion of the case proceedings by the military court, the officer authorized to confirm the sentence passed by such military court, or an officer superior to such officer, and in cases where confirmation of the sentence is not required, the Senani, Corps Commander, Paltan Commander, or Brigade Commander, after the verdict of the military court, may pass reasonable orders regarding the property, documents related to the offense presented before the military court during the trial, to confiscate, destroy, return to the person claiming entitlement, or sell them. (4) If the trial does not take place within the State of Nepal, the officer issuing the order under sub-section (1) shall send a copy of the order to the Chief District Officer of the district where the property is located, and the Chief District Officer shall cause the work to be done according to such order. Explanation: For the purpose of this section, "property" means, in relation to property connected with the offense, property within original possession or right, as well as income obtained immediately or later by transforming, exchanging, or selling such property. 98.

Validity of Military Court Proceedings: Proceedings conducted by a military court under this Act shall be deemed judicial proceedings. 99. Adjournment and Dissolution of Military Court: (1) A military court shall be adjourned in the following circumstances: - (a) After the trial has commenced, if the number of President and members specified under Section 67 decreases, (b) During the ongoing trial, if the representative of the Judge Advocate General or the accused is ill, making it impossible to continue the trial. (2) If, from the perspective of military necessity or discipline, it appears impossible or inappropriate to continue the military court, the officer authorized to convene the military court may dissolve the military court. (3) If a military court adjourned for a reason under sub-section (1) returns to its previous state, the trial may be resumed. (4) If a military court is dissolved for a reason under sub-section (2), a new military court may be convened and the trial may be resumed. (5) A military court shall be automatically dissolved upon the completion of all proceedings related to the judgment. 100. Sending of Case Record: (1) After the completion of the trial, proceedings, and adjudication by a military court other than a Summary Military Court, the case record along with the decision shall be sent to the Judge Advocate General. The Judge Advocate General, after

conducting necessary examination, shall send the judgment or opinion for confirmation to the officers under Sections 108, 109, and 110, respectively. (2) After the trial, proceedings, and adjudication by a Summary Military Court, the case record along with the decision shall be sent to the Judge Advocate General. The Judge Advocate General shall conduct necessary examination 105.

Departmental Punishment: (1) Notwithstanding anything written in Chapter 8 and this Chapter, if a person of the following rank falling within the jurisdiction of this Act commits an offence under this Act, the officer as mentioned below may, having regard to the gravity of the offence, order departmental punishment as follows without convening a military court to such person:- (a) The Commanding Officer or a Commander of equivalent rank or any other officer designated by the Chief of the Army Staff with the approval of the Government of Nepal may order any one or more of the following departmental punishments to a person of ranks other than officers and warrant officers:- (1) Detention in military custody for up to thirty days, (2) Confinement for up to thirty days, (3) Imprisonment in line for up to thirty days, (4) Additional guard or duty, (5) Removal from current duty or dismissal from the rank held in an acting capacity, (6) Stopping or deducting the salary and allowances received on account of good service, conduct or qualification, (7) Admonition, (8) Fine of up to fourteen days' salary in one month, (9) Stopping or deducting salary and allowances until compensation is made, (10) Field punishment for up to thirty days when engaged in active service, (11) Field punishment. (b) The Divisional Commander, Brigade Commander or a Commander of equivalent rank or any other officer designated by the Chief of the Army Staff with the approval of the Government of Nepal may order any one or more of the following departmental punishments to an officer or warrant officer below the rank of Lieutenant Colonel:- (1) Admonition, (2) Warning, (3) Stopping salary and allowances until compensation is made, (4) Stopping promotion for up to one year, (5) Deduction of seniority for up to one year. (c) A Major General or an officer of equivalent rank or any other officer designated by the Chief of the Army Staff with the approval of the Government of Nepal may order any one or more of the following departmental punishments to officers and warrant officers of the rank of Lieutenant Colonel and below:- (1) Admonition, (2) Warning, (3) Stopping salary and allowances until compensation is made, (4) Stopping promotion for up to one year, (5) Deduction of seniority for up to one year. (d) Any other officer designated by the Chief of the Army Staff or the Commanding Officer with the approval of the Government of Nepal may, against a soldier of warrant officer rank accused of any offence under this Act, proceed in the prescribed manner and, if found guilty, may stop the salary and allowances of such person until compensation for the loss caused is made. (2) Before ordering departmental punishment pursuant to sub-section (1), if the concerned accused so desires, he or she shall not be deprived of the right to submit an application to have such offence tried by a military court.

106. Limit of Departmental Punishment: (1) When ordering departmental punishment pursuant to clause (a) of sub-section (1) of Section 105, field punishment shall not be imposed under sub-clauses (1), (2) and (3) of the same clause.

(2) If two or more punishments under sub-clauses (1), (2), (3) or (4) of clause (a) of sub-section (1) of Section 105 are imposed, the punishment under sub-clause (3) or (4) shall be additional only after the punishment under sub-clause (1) or (2) has been served.

(3) If one or more punishments are ordered under sub-clauses (1), (2) or (3) of clause (a) of sub-section (1) of Section 105, the total duration of such punishment shall not exceed forty-five days.

(4) Punishment under sub-clause (7) of clause (a) of sub-section (1) of Section 105 shall not be imposed on a soldier below the rank of Non-Commissioned Officer. 107. Collective Fine: (1) If equipment, any weapon,

ammunition or any part of a weapon of any battalion, squadron, battery or other similar unit is lost or stolen, the Commander of the company, battalion, division or brigade of that unit may, after receiving the report of the Court of Inquiry, impose a collective fine on all or as many persons of that unit, including warrant officers, non-commissioned officers, and other ranks, as he or she deems to be accountable.

(2) Such fine shall be recovered proportionately from the salaries of the persons on whom the fine is imposed. Chapter 12

Confirmation and Review of Cases

108. Confirmation of Finding or Sentence of General Military Court: A finding or sentence made by a General Military Court may be confirmed by the Government of Nepal or by an officer authorized by the Government of Nepal. 109. Confirmation of Finding or Sentence of Summary General Military Court: The officer who convened the military court or, if such officer orders it to be submitted to a higher level, an officer superior to him or her may confirm the finding or sentence made by a Summary General Military Court. 110. Confirmation of Finding or Sentence of District Military Court: A finding or sentence made by a District Military Court may be confirmed by an officer authorized to convene a General Military Court or by an officer authorized by him or her. 111. Procedure to be Followed When Confirming a Case: For the purpose of confirming a case under Sections 108, 109 and 110, the military court deciding the case shall, within seven days from the date of decision, prepare the full text of the decision with clear grounds and reasons, and provide the relevant case file for confirmation within thirty days.

In the case of a file received in this manner, the body or officer confirming the decision shall finalize its action within a maximum of thirty days from the date of receipt of such file. 112. Power to Impose Conditions: The officer granting authority under Section 108 or 110 may, while granting authority, impose conditions as necessary. 113. Power to Reduce Sentence: The officer confirming the sentence of a military court may, subject to any condition imposed under Section 112, reduce the sentence of the military court or impose a lesser sentence among the punishments prescribed in Section 101. 114. Review of Finding or Sentence: (1) The officer confirming the sentence of a military court may order a review of the sentence so confirmed.

(2) If an order is made under sub-section (1), the military court may, after hearing additional evidence in that case, conduct proceedings and dispose of the case.

(3) When a case is to be reviewed, it shall be reviewed by the same officers who made the initial decision, except where they are unable to attend due to a compelling reason.

(4) If the officers who made the initial decision under sub-section (3) are unable to attend, a certificate with the reason thereof shall be included in the case file, and other members equal to the number of officers unable to attend shall be added from among those who made the initial decision, and the proceedings of the case shall commence. 115. Finding or Sentence of Summary Military Court: (1) A finding or sentence of a Summary Military Court shall not require confirmation. It shall be executed immediately.

(2) Notwithstanding anything written in sub-section (1), if the proceedings were conducted by an officer with less than five years of service, the sentence shall not be executed without the approval of a Brigade Commander or higher officer, except when engaged in active service.

(3) A finding or sentence made by a Summary Military Court shall be submitted to the Brigade or Division Commander or to an officer authorized by the Chief of the Army Staff, and such officer may, having regard to the true nature of the case, quash or reduce the finding or sentence. 116. Revision of Finding or Sentence:

(1) If a finding or sentence of a military court that has been confirmed or does not require confirmation is not supported by evidence or is otherwise unsustainable, the officer authorized to reduce the sentence under Section 113 may, if a new finding or sentence is made, execute the sentence accordingly.

Provided that such new finding or sentence shall not be made except where the military court has raised a question of jurisdiction regarding such finding or sentence or where the military court is not satisfied with the grounds for such finding or sentence.

(2) Except where a sentence has been imposed by a new finding under sub-section (1), if a sentence made by a military court that has been confirmed or does not require confirmation is for any reason rendered invalid, the officer under sub-section (1) may, subject to the provisions mentioned in that same sub-section, impose a new sentence as he or she deems appropriate.

(3) A sentence imposed under sub-section (1) or (2) shall not be more severe than the sentence originally found by the military court.

(4) A sentence revised or found under this section shall have the same effect as if made by the military court.

117. Finding or Confirmation Not Valid: A finding or sentence made by a military court other than a Summary Military Court shall not be valid until confirmed by an authorized officer. 118. Reconsideration of Order of Departmental Punishment: If an order of departmental punishment appears unlawful, unjust, or excessive, the following officers may reconsider and order the quashing, revision or reduction of such punishment:-

(a) In the case of a punishment given by a Commanding Officer, any officer higher in command than that Commanding Officer,

(b) In the case of a punishment given by any other officer, the Government of Nepal, the Chief of the Army Staff, or any other officer designated by the Chief of the Army Staff. 119.

Appeal Against Order or Decision of Military Court: (1) To hear appeals against decisions or final orders made by a General Military Court and a Summary General Military Court under clause (a) of Section 68, there shall be one Military Special Court as follows:- (a) A Judge of the High Court designated by the Government of Nepal on the recommendation of the Judicial Council ? Chairperson (b) Secretary of the Ministry of Defence ? Member (c) Chief of the Judge Advocate General's Department ? Member (2) A party dissatisfied with a decision or final order made by a General Military Court or a Summary General Military Court under clause (a) of Section 68 may appeal to the court under sub-section (1) within 35 days from the date of such decision or final order. (3) The court under sub-section (1) shall also conduct initial proceedings and final disposal of cases under Section 62. (4) An appeal against a decision made under sub-section (3) may lie to the Supreme Court within 35 days. (5) The procedure to be followed by the court under sub-section (1) when conducting initial proceedings and final disposal of cases, as well as appeal proceedings and final disposal, shall be as prescribed. (6) A party dissatisfied with a decision or final order made by a military court concerning offences within the jurisdiction under clauses (b) and (c) of Section 68 may appeal to the Chief of the Army Staff through the Judge Advocate General's Department within 35 days from the date of the decision or final order. (7) For the proceedings and final disposal of an appeal filed under sub-section (6), there shall be an Appeal Committee as follows:- (a) An Assistant Chief of the Army Staff designated by the Chief of the Army Staff ? Chairperson (b) A Colonel designated by the Chief of the Army Staff ? Member (c) A representative of the Judge Advocate General's Department not involved in the relevant military court case ? Member (8) The procedure to be followed by the Committee under sub-section (7) when conducting appeal proceedings and final disposal shall be as prescribed. Chapter 13 Execution of Sentences 120.

121. Execution of Sentence of Imprisonment: (1) A person sentenced to imprisonment by a military court shall be ordered by the officer confirming the sentence, or in the case of a Summary Military Court by the officer of that court, to be committed to prison to serve the sentence of imprisonment.

(2) After an order under sub-section (1), the Commanding Officer of the person serving the sentence or any other officer designated by him or her shall commit that person to prison with a warrant.

(3) When transferring a prisoner from one place to another, reasonable restraint may be imposed to prevent escape, absconding, or other undesirable acts.

(4) If a new order is issued in place of a previously issued order regarding a prisoner confined in prison, the officer issuing such order shall provide the relevant prison chief with a warrant accordingly.

(5) A person in custody shall not be deemed to be in unlawful custody merely because of a minor error or improper format in the warrant or any other document issued under this Act for a person sentenced to imprisonment by a military court or for any other reason.

(6) If an order has been made to send a person to prison to serve a sentence of imprisonment, the accused may be kept in custody in another suitable place until sent to that prison.

(7) In the case of a sentence of imprisonment of less than three months, the officer under sub-section (1) may order that the person so sentenced be kept in military custody to serve the sentence.

(8) When engaged in active service, a sentence of imprisonment may be served by confinement at a place designated by the Commanding Officer.

(9) A prisoner in imprisonment under this Act shall not be subjected to corporal punishment while in imprisonment, and imprisonment shall not be imposed in a manner contrary to that provided for by the prevailing law.

(10) If the officer commanding the division, battalion, division or brigade believes that a sentence of imprisonment cannot be executed in a military prison or military custody, such officer may order the sentence to be served in any other prison. 122. Period to be Considered as Prisoner of War: For the purpose of Section 131, until the investigation into the conduct of a person under Section 129 is completed, and if after such investigation the person is to be dismissed from service on account of conduct, such person shall be deemed to be a prisoner of war until the date of dismissal. 123.

Deduction of Salary and Allowances: (1) For the purpose of executing an order of punishment, salary and allowances of an officer shall be deducted as follows in the following circumstances:- (a) Salary and allowances for the day of becoming injured, unless the explanation given to the Commanding Officer is satisfactory and approved by the Government of Nepal, (b) Salary and allowances for the period of being in custody or suspended from duty under an order of punishment given by a military court or other court or by an officer authorized to order departmental punishment, (c) Amount determined to be payable for unlawfully stopping or refusing to pay someone's salary, (d) Amount required to compensate expenses incurred when a military court or an officer authorized to order departmental punishment gives an order of punishment, (e) All salary and allowances ordered to be forfeited or stopped by a military court or an officer authorized to order departmental punishment, (f) Amount of fine imposed by a military court or any other court under Section 66, (g) If a regular investigation reveals that property of the Government of Nepal or the Nepali Army has been stolen or damaged due to the negligence or fault of any officer, the amount required to compensate such property, (h) If it is found by a Court of Inquiry established by the Chief of the Army Staff that an officer has

gone over to the enemy, or while in enemy custody has served the enemy, or assisted the enemy under enemy orders or otherwise, or without due caution has wilfully neglected his or her duty and become a prisoner of the enemy, or after becoming a prisoner of the enemy has not returned to his or her side when able to do so, all salary and allowances forfeited by order of the Government of Nepal, (i) Amount required by order of the Government of Nepal for the maintenance of his or her wife and children, or amount paid by the Government of Nepal for the maintenance of such children. (2) Subject to the provisions of sub-section (1), from the salary and allowances of persons other than officers falling within the jurisdiction of this Act, the following deductions may be made:- (a) Salary and allowances for each day of being absent without leave or desertion, or being a prisoner of war, or for each day of custody under an order of a military court or other court or an officer authorized to order departmental punishment, or for field punishment imposed by a military court or such officer, and salary and allowances for each day of custody on any charge where later proven guilty by a military court or other court, (b) Salary and allowances for the period of being in custody or suspension prior to being found guilty of an offence by a military court or other court or an officer authorized to order departmental punishment, (c) Salary and allowances for each day of hospitalization due to illness certified by a medical officer as resulting from acts constituting an offence under this Act, (d) Amount prescribed by the Government of Nepal or by an officer authorized by the Government of Nepal for each day of hospitalization due to illness certified by a medical officer as resulting from misconduct or negligence, (e) Salary and allowances ordered to be forfeited or stopped by a military court or an officer authorized to order departmental punishment, (f) Salary and allowances for each day from the date of dismissal from service due to conduct while held as a prisoner of war or under enemy control until the date of release from the enemy, (g) Amount required to compensate for any damage, loss or destruction of any house or property of the Government of Nepal, or for unnecessary expenses incurred, as determined by his or her Commanding Officer, (h) Amount required to pay a fine imposed by a military court or other court or any officer exercising authority under Section 66, 105 or 107, (i) Amount required by order of the Government of Nepal for the maintenance of his or her wife and children, or amount paid by the Government of Nepal for the maintenance of such children.

124. Calculation of Period of Absence or Custody: For the purpose of clause (a) of sub-section (2) of Section 123,-

(a) Absence or custody for a continuous period of less than six hours, whether in one day or more than one day, shall not be deemed absence or custody.

(b) If, due to absence or custody for less than one day, a soldier is unable to perform a full day's work and another person is assigned to that work, the person absent or in custody for less than one day shall be deemed absent or in custody for one day.

(c) If on any day a person is absent or in custody for a continuous period of twelve hours or more, such person shall be deemed absent or in custody for one day only, regardless of the duration.

(d) If a person is absent or in custody from before midnight and such absence or custody ends after midnight, it shall be deemed a full day's duration. 125. Salary and Allowances During Trial: In the case of any person within the jurisdiction of this Act who is in custody or suspended on any charge, the designated officer may, for the implementation of clause (b) of sub-section (1) and clause (b) of sub-section (2) of Section 123, direct that his or her salary and allowances be stopped until the case is finalized. 126. Limit of Deduction: Except in the case of a sentence of dismissal, the deduction from salary and allowances under clauses (d), (f), (g) and (j) of sub-section (2) of Section 123 shall not exceed half of the salary and allowances payable to the

concerned person for any month. 127. Deduction from Amounts Other Than Provident Fund and Pension: Any amount to be deducted from the salary and allowances of a person under this Act may, without prejudice to any other method of recovery, be deducted from amounts payable to that person other than from provident fund and pension. 128. Recovery as Government Dues: To recover fines imposed during court proceedings under this Act, the matter may be communicated in writing to the concerned Chief District Officer. Upon such written communication, the concerned Chief District Officer shall recover the same as government dues under prevailing Nepali law and remit it to the concerned department. 129.

Salary and Allowances of Prisoner of War Pending Investigation into Conduct: When a person within the jurisdiction of this Act becomes a prisoner of war or is under enemy control, and an investigation into his or her conduct is required under this Act or any other Act, the Chief of the Army Staff or any officer authorized by him or her may order the whole or part of his or her salary and allowances to be stopped until the outcome of such investigation is known. 130. Remission of Deductions: Deductions from salary and allowances under this Act may be remitted to the extent prescribed. 131. Provision for Dependents of Prisoner of War from Remitted Deductions: (1) If the salary and allowances of a person within the jurisdiction of this Act who is a prisoner of war are forfeited under clause (h) of sub-section (1) and clause (a) of sub-section (2) of Section 123, but are remitted under Section 130, the designated officers shall arrange for rations and other necessities for the dependents of such person from that salary and allowances. Only the amount remaining after such arrangement shall be deemed remitted. (2) If any person within the jurisdiction of this Act is a prisoner of war or is missing in active service, suitable rations and other things shall be arranged for his or her dependents from his or her salary and allowances as prescribed. 132. Execution of Sentence When Outside Nepal: (1) If a person sentenced under this Act is outside the territory of Nepal, the sentence may be executed in the country where such person is located or by bringing him or her to Nepal. (2) If any person serving in the Nepali Army is to be released from service while residing outside the territory of Nepal, or after release, he or she may be recalled to Nepal. Chapter 14 Miscellaneous 133. Control and Responsibility of Weapons, Ammunition and Other Military Equipment: (1) Subject to the provisions prescribed by the Government of Nepal, the responsibility for control of weapons, ammunition and other military equipment of the Nepali Army shall vest in the Chief of the Army Staff. (2) If it is necessary to purchase weapons, ammunition and other military equipment for the Nepali Army, the Chief of the Army Staff shall submit a detailed statement with justification to the Ministry of Defence.

The statement so received shall be submitted to the National Security Council for recommendation to the Cabinet for policy decision.

(3) The Chief of the Army Staff may, subject to prevailing law and the directions given by the Government of Nepal, order that weapons, ammunition and other military equipment of the Nepali Army under his or her charge be made available to any unit of the Nepali Army under his or her control and responsibility.

(4) The Chief of the Army Staff may, with the approval of the Government of Nepal, transfer or donate weapons, ammunition and other military equipment of the Nepali Army to bodies other than units of the Nepali Army.

(5) The Chief of the Army Staff shall submit an updated inventory of weapons, ammunition and other military equipment of the Nepali Army to the Ministry of Defence every six months, and in addition, it shall be the duty of the Chief of the Army Staff to submit an updated inventory at any time requested by the Ministry of Defence.

(6) The Chief of the Army Staff shall have the authority to write off weapons and ammunition expended for

army work and training, and the authority to write off weapons and ammunition expended for other work shall vest in the Ministry of Defence. 134.

Remuneration and Facilities of the Chief of the Army Staff: (1) The monthly remuneration of the Chief of the Army Staff shall be as determined by the Government of Nepal. (2) The Government of Nepal shall deduct ten percent from the monthly remuneration of the Chief of the Army Staff as provident fund and shall add an equal amount and deposit it into the provident fund. (3) A Chief of the Army Staff who does not have suitable accommodation within the Kathmandu Valley shall be provided with suitable housing by the Government of Nepal. (4) A vehicle shall be provided to the Chief of the Army Staff by the Government of Nepal. (5) After retiring from service, the Chief of the Army Staff shall receive a pension in accordance with the prevailing rules regarding pension of the Nepali Army. (6) The family of the Chief of the Army Staff, including the immediate household, shall be given family pension as follows:- (a) If the Chief of the Army Staff dies while in office, a lump sum amount as determined by the Government of Nepal, (b) If the Chief of the Army Staff dies before completing nine years from the date of starting to receive pension under sub-section (5), an amount equal to the same pension for the remaining period up to nine years. (7) Notwithstanding anything written in sub-sections (5) and (6), no pension or family pension shall be given for the period during which a Chief of the Army Staff served in an acting capacity. (8) The Chief of the Army Staff shall be entitled to the following leave with full pay each year:- (a) Casual leave twenty days, (b) Home leave forty-five days, (c) Sick leave fifteen days. (9) Casual leave not used within the same year shall not be carried forward to the next year. Home leave may be accumulated up to a maximum of forty-five days, and sick leave may be accumulated throughout the service period. The Chief of the Army Staff shall receive the amount of accumulated home leave and sick leave upon retirement. (10) The Chief of the Army Staff may take casual leave on his or her own authority, while home leave and sick leave shall be approved by the Minister of Defence. (11) The Government of Nepal may recall the Chief of the Army Staff to duty before the leave period is completed. 135. Declaration of Being Engaged in Active Service: The Government of Nepal may declare that any person or body of persons within the jurisdiction of this Act is engaged in active service, regardless of where they are working or whether any other Act is applicable.

Added by the Act to Amend Some Nepal Acts to Make Conformable with the Constitution of Nepal, 2075.135a. Power to Utilize: The Government of Nepal may also utilize the Nepali Army for development and construction works and disaster management. 136. Military Prison: The Government of Nepal may designate any house or part of a house under its control, having humane physical facilities, as a military prison for the confinement of persons sentenced to imprisonment by a military court. 137. Application of this Act to Any Force: (1) The Government of Nepal may, by notification published in the Nepal Gazette, constitute a separate force for specific work. (2) By the notification published under sub-section (1), the Government of Nepal may issue an order applying all or some of the sections of this Act to the force so constituted, with or without modification, or suspending any section for a certain period, and may also prescribe necessary conditions in such order. (3) The provision under sub-section (2) may also be applied to persons under clause (b) of sub-section (1) of Section 3. (4) The Government of Nepal may also deploy soldiers of various ranks serving in the Nepali Army to the force under sub-section (1). 138. Officers to Exercise Powers in Special Circumstances: (1) When persons within the jurisdiction of this Act are working under the command of a Commanding Officer of a military organization having a greater number than that in any unit of the Nepali Army, the Government of Nepal may appoint officers of the division, battalion, division and brigade under this Act to exercise the powers of a Commanding Officer over such persons. (2) When appointing under sub-section (1), the Government of Nepal may prescribe all or some powers, limits, exceptions and conditions under this Act. 139. Classification and Inclusion: (1) The Government of Nepal may classify any

person or body of persons under Section 3 within the jurisdiction of this Act into officers, warrant officers or non-commissioned officers, and may include any person in the class so classified, and may cancel any previous classification. (2) If a person has not been classified as an officer, warrant officer or non-commissioned officer under sub-section (1), he or she shall be deemed to be below non-commissioned officer. 140.

Power to Constitute Commission of Inquiry: (1) The Government of Nepal may constitute a commission of inquiry under the Commission of Inquiry Act, 2026 to inquire into and report on any matter of public interest involving any person within the jurisdiction of this Act. (2) The functions, duties and powers of a commission of inquiry constituted under sub-section (1), and other provisions, shall be as provided in that Act. 141.

Power to Delegate Authority: (1) The Government of Nepal may delegate the authority vested in it under this Act and the rules made under this Act to the Chief of the Army Staff and subordinate bodies or officers or other government bodies or officers. (2) The Government of Nepal may, in special circumstances, entrust the authority vested in it or in any body or officer under prevailing law, as necessary, to the Chief of the Army Staff and units subordinate to him or her. (3) The entrustment of authority under sub-sections (1) and (2) shall not be deemed to prevent the Government of Nepal or the concerned body or officer from exercising the authority itself. (4) The Chief of the Army Staff may, under his or her responsibility, delegate the authority vested in him or her under this Act and prevailing law to subordinate bodies or officers. 142.

Power to Give Directions: (1) The Government of Nepal may give directions as necessary to the Chief of the Army Staff for the implementation of the objectives of this Act. (2) It shall be the duty of the Chief of the Army Staff to implement and cause to be implemented the directions given by the Government of Nepal under sub-section (1). 143.

Power to Make Rules: (1) The Government of Nepal may make necessary rules for the implementation of the objectives of this Act. (2) Without prejudice to the generality of the power given by sub-section (1), rules may be made on the following matters relating to the Nepali Army:- (a) Matters relating to appointment, leave, promotion, demotion, retirement, dismissal and other conditions of service, (b) Matters relating to immunity and facilities, (c) Matters relating to operation of welfare funds, (d) Matters relating to investigation, inquiry, custody of accused and filing of cases, (e) Matters relating to constitution, dissolution, suspension, activation, jurisdiction, procedure, confirmation and review of cases, and execution of findings or sentences of military courts, (f) Matters relating to determination of types of field punishment, (g) Matters relating to constitution, procedure, manner of administering oath and recording of evidence of Courts of Inquiry, (h) Matters relating to arrangement of assistance to dependents and its implementation, (i) Matters relating to write-off and disposal of unserviceable or obsolete items, (j) Matters relating to provision of salary, allowances and other amounts of deserters, (k) Matters relating to administration, supervision, management of military prisons and conditions of service of prison officers, (l) Matters relating to safety, discipline, special labour, employment, punishment for offences and remission of punishment of prisoners, (m) Matters relating to storage, movement, handover, write-off and disposal of weapons, ammunition and other military equipment, (n) Matters relating to write-off of amounts spent on intelligence work, amounts spent from revolving fund, and amounts spent for contingency work, (o) Matters relating to recreation grants, (p) Matters relating to proceedings against deserters, (q) Matters relating to arrangement of military hospitals, (r) Matters relating to military subscriptions and awards, (s) Matters relating to appointment of Judge Advocate General, (t) Matters relating to air transport and aircraft maintenance group, (u) Matters relating to parachute folder women, (v) Matters relating to defence financial procedures and daily and travel allowance, (w) Matters relating to gratuity, pension and other facilities, (x) Matters relating to short service, (y) Matters relating to military nursing, (z) Matters relating to accounts group, (aa) Matters relating to military police, (ab) Matters relating to

military technical, (ac) Matters relating to employment of ex-servicemen. 144. Repeal and Saving: